

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of:

JORDAN RIVERA, a minor, by and through
the parent, DANA RIVERA,

Petitioner,

v.

RIVER OAK UNIFIED SCHOOL DISTRICT,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: April 17, 2026

I. INTRODUCTION

1. Petitioner Jordan Rivera (“Student”) is a student who is eligible for special education and related services under the category of Autism (initially found eligible on March 11, 2024), and who attends Willow Creek Elementary School in the River Oak Unified School District (“District”). This due process complaint is brought on Student’s behalf by the parent, Dana Rivera (“Parent”), who is self-represented.

2. The District has denied Student a free appropriate public education (“FAPE”) by failing to provide an individualized education program (“IEP”) adequate to Student’s needs; by failing to implement the services the operative IEP requires; and by failing to evaluate Student appropriately. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. CONTACT AND RESIDENCE INFORMATION

34 C.F.R. § 300.508(b)(1)–(3).

3. Student was born on November 3, 2017, resides with the Parent at 1418 Alder Street, Willow Creek, CA 95833, and is enrolled at Willow Creek Elementary School. The Parent may be reached at dana.r@example.com and (555) 010-4471.

III. STATEMENT OF FACTS

4. On September 8, 2025, the IEP team adopted an annual reading fluency goal providing that Student will increase oral reading fluency to 60 words per minute with 90% accuracy on a first-grade passage, from a baseline of 22 words per minute, and noted that the goal was carried forward from the March 11, 2024 IEP with the baseline updated.

5. The IEP dated September 8, 2025 provides for 240 minutes per week of specialized academic instruction in reading, delivered in a small-group setting of no more than 4 students by a credentialed special education teacher in the special education classroom.

6. The September 8, 2025 IEP records the Parent's statement that the reading goal had not changed since the March 11, 2024 IEP, her request for a revised goal and more intensive reading instruction, and her written exception that she did not agree the reading goal was appropriate.

7. On October 6, 2025, the small-group reading block was discontinued when the reading intervention position became vacant.

8. On November 14, 2025, the District's progress report recorded 21 words per minute.

9. On December 2, 2025, the Parent requested in writing a reevaluation of Student's reading skills, including an assessment of phonological processing and decoding.

10. On December 4, 2025, the District wrote that it would prepare an assessment plan for the Parent's consent within the required timeline.

11. On January 23, 2026, the District's progress report recorded 24 words per minute.

12. The District's service delivery log for September 8, 2025 to February 27, 2026 records the full 240 minutes in 4 of 24 instructional weeks, an average of 95 minutes per week across the period, and 20 weeks below 240 minutes; it records that the reading intervention position remained unfilled as of February 27, 2026.
13. On March 6, 2026, the District's progress report recorded 23 words per minute and stated that the goal was not met.
14. On March 12, 2026, the IEP team declined to revise the reading goal, and the District issued a prior written notice.
15. In the prior written notice dated March 12, 2026 the District acknowledged that the small-group reading block was discontinued in October 2025 owing to staffing and stated that compensatory services were not proposed at the meeting.
16. On March 14, 2026, the Parent requested in writing that the reading fluency goal be revised and that the District provide the assessment plan she had requested on December 2, 2025, which she had not received.
17. On April 2, 2026, the Parent wrote that she had received no response and no assessment plan.

IV. STATEMENT OF THE PROBLEMS

A. Failure to provide an adequate individualized education program

34 C.F.R. §§ 300.320, 300.324.

18. The reading fluency goal was carried forward from the March 11, 2024 IEP with only its baseline updated, and the three progress reports since have recorded 21, 24 and 23 words per minute against a goal of 60. The District's own March 6, 2026 report states that the goal was not met and recommends continuing it. The IEP team declined to revise the goal, and the Parent's written request drew no response (paragraphs 4, 8, 13, 14 and 17).

B. Failure to implement the services the IEP requires

34 C.F.R. § 300.323.

19. The District has not delivered the service the IEP requires since the reading intervention position fell vacant on October 6, 2025: its own log records the full 240 minutes a week in only 4 of 24 instructional weeks, and the position still unfilled on February 27, 2026. Its prior written notice acknowledges the staffing cause and offered no compensatory services (paragraphs 5, 7, 12 and 15).

C. Failure to evaluate Student appropriately

34 C.F.R. §§ 300.301–300.311.

20. The District accepted on December 4, 2025 that it would prepare an assessment plan for the reevaluation the Parent had requested, and undertook to do so within the required timeline. None had been provided by April 2, 2026, and the two written requests the Parent has made since have gone unanswered (paragraphs 9, 10, 16 and 17).

V. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

21. The Parent proposes the following resolution:

- (a) convene an IEP team meeting within 15 days to adopt measurable reading goals based on current assessment data;
- (b) fund an independent educational evaluation in reading and written expression at the District's expense;
- (c) provide compensatory specialized academic instruction in reading for the 20 weeks the District's service delivery log for September 8, 2025 to February 27, 2026 records below the 240 minutes per week the IEP requires; and

- (d) implement the IEP as written, with quarterly service logs provided to the Parent.

Dated: _____

Respectfully submitted,

Dana Rivera
Parent of Jordan Rivera
Self-represented (pro se)
1418 Alder Street
Willow Creek, CA 95833
(555) 010-4471
dana.r@example.com

CERTIFICATE OF SERVICE

The Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on each office named below, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Served on:

Superintendent, River Oak Unified School District, 500 Oak Valley Road, Willow Creek, CA 95833

Special Education Division, Office of Administrative Hearings, 2349 Gateway Oaks Drive, Suite 200, Sacramento, CA 95833

Dated: _____

Dana Rivera
Self-represented (pro se)